IN THE SUPREME COURT OF INDIA

CRIMINAL LAW & ARREST SAFEGUARDS JURISDICTION

(Division Bench (2 Judges))

CASE NUMBER: Criminal Appeal No. 1277 of 2014 **CNR: SCIN010012772014**

REPORTABLE CITATION: (2014) 8 SCC 273 DATE: July 02, 2014

CORAM: Hon'ble Chandramauli Kr. Prasad & Pinaki Chandra Ghose, JJ.

Arnesh Kumar v. State of Bihar & Another

Arnesh Kumar ...PETITIONER(S)

VERSUS

State of Bihar & Another ...RESPONDENT(S)

HEADNOTE & STATUTORY PROVISIONS CONSIDERED

Acts: Code of Criminal Procedure, 1973, Indian Penal Code, 1860 | Sections: Section 41 CrPC, Section 41A CrP

Mandatory safeguards restraining routine and mechanical arrests under Section 498-A IPC and offences punishable with imprisonment up to 7 years without satisfying Section 41 CrPC checklist. Police cannot arrest individuals automatically upon filing of a matrimonial dispute or complaint for offences carrying less than 7 years. They must serve a Section 41A notice to appear first.

RATIO DECIDENDI & BINDING LEGAL PRINCIPLE

Police officers shall not automatically arrest the accused when a case under Section 498-A IPC or offences punishable with imprisonment for a term which may be less than seven years is registered. Police must satisfy themselves about the necessity of arrest based on the parameters in Section 41 CrPC, furnish a checklist, and magistrates must record satisfaction before authorizing detention.

FINAL JUDICIAL DISPOSITION

DISPOSITION: Arrest Guidelines Enacted Nationwide (Outcome: Allowed)

Precedential Authority: Good Law (Binding Precedent)

LEXGUARD CRYPTOGRAPHIC REGISTERED SEAL • STATUTORY JUDICIAL ARCHIVE

`Section 65B IEA / Section 63 BSA • Immutable Repository Authority Record`